Amendment of section 40.

13. In section 40 of the Income-tax Act, in clause (*a*), in sub-clause (*ii*), after *Explanation 2*, the following *Explanation* shall be inserted and shall be deemed to have been inserted with effect from the 1st day of April, 2005, namely:—

'*Explanation 3*.—For the removal of doubts, it is hereby clarified that for the purposes of this sub-clause, the term "tax" shall include and shall be deemed to have always included any surcharge or cess, by whatever name called, on such tax.'.